

26SMCV00232 26SMCV00232

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C08%2F25%2F2026

Source SHA-256: a588465698fa2c976c97469cea742aa24cdb960d4af5859e252f72d83b58db54

Case Number: 26SMCV00232 Hearing Date: August 25, 2026 Dept: I

The application is DENIED WITHOUT PREJUDICE. Plaintiff claims that it rented Unit E from defendant, which plaintiff states included the exclusive use of an attached garage. According to plaintiff, after plaintiff began to complain about certain issues relating to the premises, defendant suddenly suggested that the garage was shared space and demanded access. Worse, according to plaintiff, defendant has changed the garage door opener so plaintiff cannot open the exterior door, and defendant has forced entry into the garage. Plaintiff seeks a TRO to bar defendant from continuing to do so. The court does not believe that plaintiff has claimed that defendant is denying plaintiff use of the garage. Plaintiff also contends that defendant has damaged plaintiff's property in the garage.

The reason that the application is denied is because nowhere in the court file is there a copy of the actual lease. Without the lease, the court cannot say with

confidence that defendant actually leased the garage to plaintiff for

plaintiff's exclusive use. Plaintiff may

file again, but this time plaintiff needs to establish the fundamentals of its

claim.